

December 2019

To: All CPC US Drivers

Effective Date: This Policy addendum is effective January 6, 2020.

Scope: ALL CPC - US DOT, FMCSA, regulated drivers.

Additional Terms

Limited Query: A limited query allows an employer to determine if a driver has a policy violation or unresolved return to work program on file in the Clearinghouse. Limit queries do not provide for the release of any specific violation information in the driver's Clearinghouse record. Limited queries require only a general driver consent.

Full Query: A full query requires the driver's specific consent to release information stored in the Clearinghouse to a specific individual or organization at a particular point in time. For full queries electronic consent is required each time.

Third Party Administration

The Company has contracted with US DOT certified Medical Review Officers (MRO) and a Third Party Administration (TPA) provider(s) to manage the Companies compliance requirements regarding the US DOT Clearinghouse program.

Pre-employment (Full Query) Background Checks

Before operating a commercial motor vehicle (CMV) in the United States of America (USA), the company must conduct a background check in the US DOT Clearinghouse portal. The purpose of this background check is to identify whether or not a driver applying for a US DOT CMV position has an outstanding positive drug test result or other part 382 policy violation on file.

Prior to conducting the background check, full query, in the Clearinghouse portal, the applicant must provide electronic consent on the Clearinghouse website.

If the applicant refuses to provide consent, the prospective employer must not permit the driver to operate a CMV in the USA for the Company. This refusal is not considered a reportable 382 violation, and no further action is required.

If the full query produces a result stating the applicant has a positive result or policy violation on file, the company will be responsible for providing the applicant with contact information for a US DOT certified

Substance Abuse Professional (SAP). As per this policy the applicant is responsible for the cost of any assessments and subsequent education and/or treatment.

If the full query produces a result stating the applicant has an unresolved return to work program on file, the company will be responsible for requesting information from the previous employer. Written consent from the applicant is required before the previous employer can release the information related to the violation. The prospective employer remains responsible for ensuring the remaining follow-up tests are completed within the SAP recommended timeframe. As per this policy, the company will not be responsible for the additional costs incurred by the additional testing requirements and will pass the financial responsibility to the successful candidate.

Reporting of Positive Result, Policy Violations and Return to Work Program Documents

The Company's designated MRO(s) must report all declared positive drug results and substituted or adulterated samples to the Clearinghouse within 2 business days of the company being notified of the result.

The TPA, on behalf of the Company, will report all other reportable documents to the Clearinghouse. These include, negative return to duty results, 49 CFR Part 382 actual knowledge policy violations such as impaired driving charges while operating a CMV, refusal to be tested, and positive alcohol results .04 or greater.

Any results reported to the Clearinghouse can be challenged by the driver or applicant, but will be the responsibility of the driver or applicant to manage.

Following successful completion of the SAP assessment process, the SAP will report the SAP program documentation to the employer or prospective employer and to the Clearinghouse. It will be the responsibility of the driver or applicant to register their SAP in the Clearinghouse portal under their profile following a violation to ensure the paperwork has been uploaded and that a return to duty test can be conducted.

Background Checks on Current Driver Pool

The Company must, at minimum, conduct a background check in the Clearinghouse database for all current US DOT regulated CMV drivers on an annual basis. The Company must get a signed limited query consent form from each active driver, which will be in place for the duration of the driver's employment with the Company, before conducting a limited query. If a driver refuses to sign the limited query consent form the company may no longer allow the driver to operation a CMV in the USA for their company.

If during a limited query the Clearinghouse produces a notification that there is a file to be reviewed, the Company has 24 hours to get the driver to provide electronic consent on the Clearinghouse website. If the driver does not, or is unable to provide consent within 24 hours of the limit query report, the driver must be put out of service until consent has been given and the report has been received, reviewed and resolved.

Acknowledgement

I hereby acknowledge and agree that I have received, have read, and understand this DOT Alcohol & Drug Policy addendum, Appendix A - US DOT 49 CFR Part 382.7 – The Clearinghouse, and agree to abide by the terms and conditions of the addendum.

I understand and agree that my compliance with the terms and conditions of the addendum form part of my essential job functions and that the terms of the addendum have been properly mandated by the Company for my own safety, that of my co-workers, as well as of the general public.

I understand and agree that my compliance with this addendum is an essential and required term of my new or continuing contract of employment or contract for services with the Company. I further understand and agree that, as applicable: (a) my offer of a contract of employment or contract for services with the Company is conditional upon my signing of this Acknowledgement; or (b) the continuation of my contract of employment or contract for services with the Company is conditional upon my signing of this Acknowledgement.

Employee/Applicant Signature

Print Name

Company Witness Signature

Print Name